

CONNOLLY v. DE LA CRUZ

23CV46549

CROSS-DEFENDANT'S DEMURRER TO CROSS-COMPLAINT

This civil action stems from a dispute over easement rights. Before the Court is a demurrer to the operative cross-complaint filed 03/09/23. Just days ago, this Court received an opposition to the demurrer. While it is obviously late, and objected to by cross-defendant, this Court notes that the question of standing – which forms the entire basis for the demurrer – is heavily fact-dependent. For that reason, this Court prefers to consider the opposition rather than give the moving party a temporary victory. To permit adequate time, and to coordinate with other motions, the hearing on this demurrer is hereby continued to 07/07/23 at 9:00 a.m. in Dept. 2, to be heard with another pending demurrer in this case. Cross-defendant is granted leave to file a reply brief to the opposition, pursuant to Code, based on the new hearing date.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

BADGEROW et al v. STATE OF CALIFORNIA

23CV46681

PETITION FOR ORDER PERMITTING LATE CLAIM

This is a special proceeding pursuant to Govt. Code §946.6 for leave to submit a late GCA claim for an incident involving a runaway golf cart.

Background

On 05/22/22, at approximately 1 p.m., petitioners Rachael Badgerow, Erin Cheney and David Brown were eating lunch at the Calaveras County Fairgrounds when an unmanned golf cart crashed into them, causing injuries. The CHP was summoned to investigate, and a report was taken. The investigating officer noted that the golf cart operator was at fault for failing to set the parking brake when leaving the cart at the top of an embankment. The officer further noted in the report that the golf cart was insured through the California Fair Service Authority.

On 12/09/22, petitioners submitted to the County of Calaveras an application to present a late claim for damages associated with the gold cart incident. Petitioners were informed at that time that the 39th District Agricultural Association – an agency arm of the State of California – was responsible for the premises upon which the incident occurred. The County asked petitioners' counsel to withdraw the application (the outcome of which is unknown).

On 12/15/22, petitioners submitted to the State of California an application to present a late claim for damages associated with the gold cart incident. According to petitioners, State never responded in any manner, leading to a *de facto* rejection.

On 04/05/23, petitioners filed the pending petition for relief.

Petition for Relief

The purpose of the Governmental Claims Act (GCA) is to provide the public entity sufficient information to enable it to (1) investigate/settle claims without the expense of litigation, (2) plan for potential fiscal liabilities, and (3) avoid similar liabilities in the future. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738.) As such, no suit for money or damages may be maintained against a governmental entity unless a formal claim has been presented to such entity within six months of accrual of the cause of action. (Govt. Code §911.2.) If the claimant fails to file within six months, he or she may apply in writing to the public entity for permission to file a late claim. (Govt. Code §911.4; see *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648,